OPEN SOCIETY
JUSTICE INITIATIVE

LITIGATION

Swedish Criminal Investigation of Chemical Weapons Attacks In Syria

COURT
Domestic Courts

COUNTRY
Sweden

STATUS
Active

CASE MANAGER

On April 19, 2021, the Open Society Justice Initiative joined survivors of chemical weapons attacks in Syria, the Syrian Center for Media and Freedom of Expression (SCM), Syrian Archive, and Civil Rights Defenders in filing a criminal complaint with Swedish War Crimes Commission within the Swedish Police Authority. The complaint includes information from detailed investigations into the chemical attacks on Al-Ghouta on August 21, 2013 and Khan Shaykhoun on April 4, 2017, and alleges that these chemical weapons attacks constitute war crimes and crimes against humanity. The complaints and accompanying dossiers include new evidence from survivors and investigative leads, analyses chains of command that conducted the attacks, and identifies a number of Syrian government officials that the NGOs allege are responsible for the attacks.

The organizations are calling on the Swedish police to open a formal investigation and form a joint investigation with their counterparts in Germany and France, where the NGOs have filed related complaints. The Swedish complaints are part of a legal campaign by survivors and human rights groups demanding criminal investigations of the Syrian government officials responsible for the use of chemical weapons and their eventual prosecution.

Background

The chemical weapons attacks on Ghouta and on Khan Shaykhun are two of the Syrian conflict's deadliest chemical weapons attacks committed during the Syrian conflict, together killing more than a thousand civilians, according to the Independent International Commission of Inquiry on the Syrian Arab Republic. Sarin, the deadly nerve agent that was used in this attack, killed and caused lasting disabilities among a civilian population that included women and children. First responders and medical personnel were also harmed as they tried to rescue victims. Attacks on nearby medical facilities were carried out to coincide with the chemical attacks, which severely limited the emergency medical response.

The Syrian government has used chemical weapons during the conflict as part of a pattern of deliberate and widespread attacks against civilians in areas held by opposition forces. Eastern and Western Ghouta and Khan Shaykhun were under control of the opposition at the time of the chemical attacks.

Sarin and other chemicals have been developed and produced as part of the Syrian government's highly secretive chemical weapons program. At the heart of Syria's chemical weapons program lies the Scientific Studies and Research Center (SSRC), a Syrian government-affiliated entity responsible

for the development and production of conventional and non-conventional weapons and delivery systems.

Following the chemical attacks on Eastern and Western Ghouta on August 21, 2013, the Organization for the Prohibition of Chemical Weapons (OPCW) adopted procedures for the destruction of Syria's chemical weapons program. The decision was endorsed by the United Nations Security Council in Resolution 2118 in 2013. All chemical weapons materials declared by Syria were destroyed by mid-August 2014. Yet, later chemical attack, including on Khan Shaykhun in 4 April 2017, illustrate that the Syrian government continued its chemical weapons program past the destruction of its stockpiles.

Some states, including Sweden, have universal jurisdictions laws, which provide national prosecutors and courts with the authority to investigate and prosecute international crimes committed on foreign territory by foreign nationals. For more, see the briefing paper produced by the Justice Initiative and TRIAL International: "Universal Jurisdiction Law and Practice in Sweden".

Al-Ghouta Chemical Weapons Attacks

In the early hours of August 21, 2013, chemical weapons attacks targeted two suburbs of Damascus. Several chemical rockets loaded with sarin struck Eastern Ghouta and, hours later, Western Ghouta. When families scrambled in the middle of the night to reach their rooftops to avoid exposure to sarin, a highly lethal nerve agent, they were hit by mortar fire and other shelling by Syrian government forces. This forced them to flee the rooftops to the ground below, killing many children, women, and men. The chemical attacks resulted in more than a thousand deaths and thousands of serious injuries.

The Justice Initiative and our Syrian partners have investigated the Syrian government chains of command responsible for the chemical attacks on Eastern Ghouta, uncovering evidence showing the roles of senior officers within. These government branches include the SSRC's Branch 450, which supports the planning and execution of Syria's chemical weapons attack; the Republican Guard; the Syrian Missile and Artillery Directorate; the General Command of the Army and Armed Forces; the 4th Armored Division; the 155th Missile Brigade; the 104th and 105th Brigades of the Presidential Guard. We have also submitted evidence concerning the roles of Maher Al-Assad, brother of President Bashar al-Assad, who gave personal orders for the attacks, and President al-Assad, who held the highest responsibility in authorizing the attack.

Khan Shaykhun Chemical Weapons Attack

On the morning of April 4, 2017, a Sukhoi-22 aircraft took off from Shayrat Airbase and dropped a sarin bomb on the town of Khan Shaykhun in the Idlib Governorate. The sarin attack resulted in upwards of a hundred deaths and hundreds of injuries.

The Joint Investigative Mechanism of the United Nations and the Organization for the Prohibition of Chemical Weapons (OPCW) investigated the attack and concluded that it was "confident that the Syrian Arab Republic is responsible for the release of sarin at Khan Shaykhun" on April 4, 2017. The chain of command responsible for the chemical attack on Khan Shaykhun includes the pilot of the aircraft, commanders of the 22nd Air Division, the commander of the Syrian Arab Air Force and Syrian Arab Air Defense Forces, and the Chief of Staff of the Army and Armed Forces, with President Bashar al-Assad holding the highest responsibility in authorizing the attack.

Open Society Justice Initiative Involvement

Since 2017, the Justice Initiative has partnered with Syrian Archive and the Syrian Center for Media and Freedom of Expression to investigate chemical weapons attacks and to identify the perpetrators and chains of command responsible. Our work on chemical weapons accountability has been supported by investigators at ArcticWind Solutions, the Human Rights Center Investigations Lab at UC Berkeley School of Law, and C4ADS.

The Justice Initiative and its partners interviewed over 90 witnesses to build its dossier of evidence. This includes numerous former government insiders, who are willing to provide testimony to judicial authorities. Additionally, the Justice Initiative represents more than more than twenty survivors of chemical weapons attacks who seek to give evidence to the French judicial authorities.

The complaints in Sweden is part of a legal campaign by survivors and civil society organizations seeking accountability for Syria's use of chemical weapons. The complaints in Sweden follow the filing by the Justice Initiative, Syrian Archive and the Syrian Center for Media and Freedom of Expression in October 2020 of a criminal complaint with the Office of the German Federal Public Prosecutor. The complaint in Germany related to

the chemical weapons attacks on Al-Ghouta in 2013 and on Khan Shaykhoun in 2017. It also follows the filing of a criminal complaint and civil party application in France in April 2021 concerning chemical attacks at Douma on 5 August 2013 and Eastern Ghouta on 21 August 2013.

RELATED CASES

LITIGATION

French Criminal Investigation of Chemical Weapons Attacks In Syria

On March 1, 2021, the Justice Initiative joined Syrian survivors of chemical weapons attacks, the Syrian Center for Media and Freedom of Expression (SCM), and Syrian Archive in seeking a French criminal investigation for the August 2013 chemical weapons attacks on the city of Douma and on Eastern Ghouta.

LITIGATION

German Criminal Investigation into Chemical Weapons Attacks in Syria

The Justice Initiative has joined with Syrian groups in filing the first criminal complaint against Syrian government officials for the 2013 and 2017 chemical weapons attacks in Ghouta and Khan Shaykhun. The complaint was filed before the Office of the German Federal Prosecutor.

RELATED WORK

PRESS RELEASE

Bashar al-Assad Can Be Prosecuted in France, but the Court Missed an Opportunity to Make History

The decision stands in stark contrast to the post-World War II rejection of impunity for heads of state, and it undermines decades of progress in holding leaders accountable for mass atrocities.

JULY 28, 2025

PRESS RELEASE

Statement by Civil Society Organizations on the Upcoming French Cour de Cassation Hearing Regarding Immunities for State Officials

France's Court of Cassation will hold a landmark hearing to review the legality of the arrest warrant against Bashar al-Assad for deadly chemical attacks in Syria. This is a pivotal moment in the fight against impunity.

JULY 03, 2025

PRESS RELEASE

French Court of Appeal Validates Historic Arrest Warrant for Syrian President Bashar al-Assad: A Legal Milestone and Important Victory for Survivors

The Paris Court of Appeal upheld arrest warrants for Syrian President Bashar al-Assad, his brother Maher al-Assad, and two senior military officials for their alleged roles in the 2013 Ghouta and Douma chemical attacks.

JUNE 26, 2024

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